

		or confidential relationship.” (Prakashpalan v. Engstrom, Lipscomb & Lack (2014) 223 Cal.App.4th 1105, 1131, as modified on denial of reh'g (Feb. 27, 2014).) “Constructive fraud arises on a breach of duty by one in a confidential or fiduciary relationship to another which induces justifiable reliance by the latter to his prejudice.” (Ibid.) “A confidential relationship exists when one party gains the confidence of the other and purports to act or advise with the other’s interest in mind.” (Younan v. Equifax Inc. (1980) 111 Cal.App.3d 498, 517, fn 15.) As stated above, Plaintiff has not alleged the Defendant’s intent to deceive at the time of the nondisclosure. Additionally, Plaintiff has not alleged the requisite fiduciary relationship between Plaintiff and Defendant. The motion for judgment on the pleadings is GRANTED as to the second cause of action for constructive fraud WITHOUT LEAVE TO AMEND.
106	Saldarriaga vs. Javahery 24-01373839	Plaintiff/ Cross-Defendant, Defendant/ Cross-Complainant Daniel Toledo (“Toledo”) moves pursuant to Code of Civil Procedure section 877.6(a)(1) for a determination that the settlement reached between Daniel Toledo and Evelyn Martinez, Maite Saldarriaga, and Brandon Rodriguez was made in good faith. Toledo also asks the Court to bar all present and future parties to this action from making claims against Daniel Toledo for equitable comparative contribution, or partial or comparative indemnity, based on comparative indemnity, based upon comparative negligence or comparative fault. The determination of a good faith settlement with one or more tortfeasors or co-obligors is governed by Code of Civil Procedure section 877.6. Pursuant to Code of Civil Procedure section 877.6(a)(2):

		“In the alternative, a settling party may give notice of settlement to all parties and to the court, together with an application for determination of good faith settlement and a proposed order. The application shall indicate the settling parties, and the basis, terms, and amount of the settlement. The notice, application, and proposed order shall be given by certified mail, return receipt requested, or by personal service. Proof of service shall be filed with the court. Within 25 days of the mailing of the notice, application, and proposed order, or within 20 days of personal service, a nonsettling party may file a notice of motion to contest the good faith of the settlement. If none of the nonsettling parties files a motion within 25 days of mailing of the notice, application, and proposed order, or within 20 days of personal service, the court may approve the settlement. The notice by a nonsettling party shall be given in the manner provided in subdivision (b) of Section 1005. However, this paragraph shall not apply to settlements in which a confidentiality agreement has been entered into regarding the case or the terms of the settlement.” (Code Civ. Proc., § 877.6, subd. (a)(2).) “The issue of the good faith of a settlement may be determined by the court on the basis of affidavits served with the notice of hearing, and any counteraffidavits filed in response, or the court may, in its discretion, receive other evidence at the hearing.” (Code Civ. Proc., § 877.6, subd. (b).) “A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault.” (Code Civ. Proc., § 877.6, subd. (c).) “If the good faith settlement is contested, section 877.6, subdivision (d), sets forth a workable ground rule for
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the hearing by placing the burden of proving the lack of good faith on the contesting party.” (City of Grand Terrace v. Superior Court (1987) 192 Cal.App.3d 1251, 1261.) Section 877.6(d) states: “[t]he party asserting the lack of good faith shall have the burden of proof on that issue.” (Code Civ. Proc., § 877.6, subd. (d).)

“The party asserting the lack of good faith, who has the burden of proof on that issue (§ 877.6, subd. (d)), should be permitted to demonstrate, if he can, that the settlement is so far ‘out of the ballpark’ in relation to these factors as to be inconsistent with the equitable objectives of the statute.” (Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499–500.) “Such a demonstration would establish that the proposed settlement was not a ‘settlement made in good faith’ within the terms of section 877.6.” (Id. at 500.)

Determination of a good faith settlement require consideration of the following Tech Bilt factors: (1) a rough approximation of plaintiff’s total recovery and the settlor’s proportionate liability; (2) the amount paid in settlement; (3) the allocation of settlement proceeds among plaintiffs; (4) a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial; (5) financial conditions and insurance policy limits of settling defendants, and (6) existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants. (Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499.)

“[P]ractical considerations obviously require that the evaluation be made on the basis of information available at the time of settlement.” (Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499.) “[A] defendant’s settlement figure must not be grossly disproportionate to what a reasonable person, at the time of the settlement, would estimate the settling defendant’s liability to be.” (Id.)

However, “the damages are often speculative, and the probability of legal liability therefore is often uncertain....” (City of Grand Terrace v. Superior Court (1987) 192 Cal.App.3d 1251, 1262.)

Here, Daniel Toledo applies for a determination that the settlement reached between Daniel Toledo and Evelyn Martinez, Maite Saldarriaga, and Brandon Rodriguez was made in good faith. Toledo also asks the Court to bar all present and future parties to this action from making claims against Daniel Toledo for equitable comparative contribution, or partial or comparative indemnity, based on comparative indemnity, based upon comparative negligence or comparative fault.

Based on the arguments and evidence proffered, the Court finds that the settlement amounts of \$25,000 to Evelyn Martinez and \$25,000 to Brandon Rodriguez as well as the waiver of costs to Maite Saldarriaga are appropriate and made in good faith. There appears to be no evidence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling parties.

No parties opposed the motion. As established in the authority above, the burden of proving the lack of good faith is placed on the contesting party. Here, there is no contesting party and therefore this burden has not been met.

In addition, the Court will consider the parties’ failure to oppose Toledo’s motion as an implied concession to the merit of Toledo’s arguments and evidence presented therein. (Herzberg v. County of Plumas (2005) 133 Cal.App.4th 1, 20; DuPont Merck Pharmaceutical Co. v. Superior Court (2000) 78 Cal.App.4th 562, 566, as modified (Jan. 25, 2000) [“By failing to argue the contrary, plaintiffs concede this issue.”]; Glendale Redevelopment Agency v. Parks (1993) 18 Cal.App.4th 1409, 1424 [holding that “by failed to address” an issue, the issue is “impliedly concede[d].”]; and Westside Center Associates v.

		Safeway Stores 23, Inc. (1996) 42 Cal.App.4th 507, 529 [“Its failure to address the threshold question of intent effectively concedes that issue and renders its remaining arguments moot.”].) The Court finds that the Tech Bilt factors weigh in favor of finding that the settlement reached between Daniel Toledo and Evelyn Martinez, Maite Saldarriaga, and Brandon Rodriguez was reached in good faith and therefore the Application for Determination of Good Faith Settlement is GRANTED. Moving party to give notice.
107	Hamidian vs. Avis Budget Group, Inc. 20-01174350	1. Motion for Determination of Good Faith Settlement x 2 2. Motion to Contest Good Faith Settlement 1) Motion for Determination of Good Faith Settlement Defendants, Avis Budget Group, Inc. (“Avis”) and County of Orange (collectively, “Defendants”) move for an order determining that the settlement between Plaintiff, Afsaneh Hamidian (“Plaintiff”), and Defendants was made in good faith, and that the Court dismiss, with prejudice, any and all complaints and cross-complaints in favor of Defendants in this action pursuant to California Rules of Court, rule 3.182, and bar any future claims against Defendants for equitable comparative contribution, partial indemnity or comparative indemnity, based on comparative negligence or comparative fault, pursuant to Code of Civil Procedure section 877.6. No opposition has been filed. Code of Civil Procedure section 877.6 provides in pertinent part: